

## 23CHCV03054 23CHCV03054

County: los-angeles

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MOTION TO SET

ASIDE SUMMARY JUDGMENT AND FOR RECONSIDERATION

Motion filed on April 27, 2026.

MOVING PARTY: Larry Brent (Plaintiff), in pro per

RESPONDING PARTY: State Farm Mutual Automobile Insurance  
Company (Defendant)

NOTICE: OK.

RELIEF REQUESTED: An order setting aside the April 17, 2026  
order granting summary judgment under Code of Civil Procedure section 473,  
subdivision (b), reconsidering and revoking that order under Code of Civil  
Procedure section 1008, subdivision (a), and awarding costs and fees.

RULING: Denied.

BACKGROUND

Larry Brent (Plaintiff) filed the operative complaint

against State Farm Mutual Automobile Insurance Company (Defendant) on October 11, 2023, alleging breach of contract, tortious breach of the implied covenant of good faith and fair dealing, and declaratory relief.

On January 4, 2024, the Court sustained Defendant's demurrer to the bad faith and declaratory relief causes of action and struck the punitive damages allegations. Plaintiff did not amend, leaving breach of contract as the sole cause of action.

On April 15, 2026, Plaintiff filed an ex parte application for an order to show cause concerning alleged tampering with a court reporter's certification seal. The Court denied that application on April 16, 2026.

On April 17, 2026, the Court granted Defendant's motion for summary judgment on the breach of contract claim, and the Clerk gave notice the same day. Judgment was entered in Defendant's favor on May 1, 2026.

Plaintiff served the present motion on April 24, 2026, and filed it on April 27, 2026, supported by his declaration and exhibits. Defendant filed its opposition on July 7, 2026, supported by the declaration of Sheila K. McDonald and exhibits. No timely reply was filed.

## DISCUSSION

### Section 473, Subdivision (b): Mandatory Relief

The mandatory provision of section 473, subdivision (b), requires the Court to vacate a resulting default, default judgment, or dismissal when a timely application is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) Relief is mandatory even when the attorney's neglect was inexcusable, provided the attorney submits a compliant affidavit of fault. (*In re Marriage of Nishida & Kamoda* (2026) 120 Cal.App.5th 298, 315.) A summary judgment ruling is neither a default, a default judgment, nor a dismissal within the meaning of the mandatory provision of section 473, subdivision (b). (*English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 138 (English) ; see also *Hossain v. Hossain* (2007) 157 Cal.App.4th 454, 458-459.) The mandatory relief provided by the statute is not available to self-represented litigants. (*Esther B. v. City of Los Angeles* (2008) 158 Cal.App.4th 1093, 1099; *McClain v.*

Kissler (2019) 39 Cal.App.5th 399, 427-429.) Likewise, a declaration by a nonattorney does not satisfy the affidavit requirement. (Stafford v. Mach (1998) 64 Cal.App.4th 1174, 1188 (Stafford).) Nor is there an exception when counsel has allegedly abandoned the client and an affidavit cannot be obtained. (Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC (2013) 219 Cal.App.4th 1086, 1092 (Las Vegas Land & Development).)

Plaintiff argues that the mandatory provision controls because “the failure to oppose the motion for summary judgment was entirely caused by prior counsel’s mistake, inadvertence, surprise, and neglect,” that once its requirements are met “the court has no discretion to deny relief,” and that the provision “applies broadly to judgments entered without meaningful participation due to attorney fault.” (Motion at p. 5.) Plaintiff submits his own declaration in place of an affidavit from Bundy, explaining that Bundy “is unwilling to take responsibility.” (Motion at p. 6.) Defendant responds that “as counsel did not submit a declaration here, mandatory relief is not available to Plaintiff under Section 473(b),” and that Plaintiff’s premise is “patently erroneous, in that Plaintiff’s former counsel did file an Opposition to the Motion for Summary Judgment on Plaintiff’s behalf.” (Opp’n at pp. 4-5.)

Here, the mandatory provision does not apply to the April 17, 2026 order granting summary judgment because that order is not a default, default judgment, or dismissal within the meaning of section 473, subdivision (b). (English, *supra*, 94 Cal.App.4th at p. 138.) Plaintiff relies on Yeap v. Leake (1997) 60 Cal.App.4th 591, which applied the mandatory provision where counsel’s failure to attend an arbitration produced what the court regarded as the procedural equivalent of a default. (*Id.* at p. 601.) Hossain subsequently rejected Yeap’s broad construction of “default” and “default judgment” and followed English in requiring an actual default, default judgment, or dismissal. (Hossain, *supra*, 157 Cal.App.4th at pp. 458-459.) In any event, this case does not present even the circumstances addressed in Yeap because Bundy filed an opposition, and the Court considered that opposition and Plaintiff’s declaration on the merits before granting summary judgment.

Mandatory relief is independently unavailable because Bundy submitted no affidavit of fault. Plaintiff’s own declaration does not satisfy the statutory requirement. (Stafford, *supra*, 64 Cal.App.4th at pp. 1188-1189.) Bundy’s alleged unwillingness to provide an affidavit does not excuse its absence. (Las Vegas Land & Development, *supra*, 219

Cal.App.4th at p. 1092.)

Mandatory relief is denied.

#### Section 473, Subdivision (b): Discretionary Relief

The discretionary provision permits relief from a judgment or order taken against a party through mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) Attorney neglect is typically imputed to the client. (See *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 236, fn. 6.) Relief may nevertheless be granted where counsel's neglect was excusable, measured by whether a reasonably prudent attorney might have made the same error under similar circumstances. (*Generale Bank Nederland v. Eyes of the Beholder Ltd.* (1998) 61 Cal.App.4th 1384, 1399.) An attorney's cognitive incapacity may constitute excusable neglect. (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 28-29.) If the neglect was inexcusable, imputation may be avoided where counsel's conduct was so extreme that it amounted to positive misconduct. That exception is narrowly applied and considers the client's fault and diligence, prejudice, delay, finality, and the policy favoring resolution on the merits. (*Seacall Development, Ltd. v. Santa Monica Rent Control Bd.* (1999) 73 Cal.App.4th 201, 204-205, 208; *Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 900.) The moving party must also show that the asserted neglect caused the challenged judgment. (§ 473, subd. (b).)

Plaintiff argues that "the abandonment of Plaintiff's case by a suspended attorney ... constitutes excusable neglect directly attributable to circumstances beyond Plaintiff's control." (Motion at p. 6.) His declaration states that Bundy was medically compromised by diabetes, faced disciplinary proceedings, and failed to present evidence in opposition to the motion. (Brent Decl. ¶ 8.) Defendant responds that Bundy filed an opposition and that Plaintiff has not established a basis for discretionary relief. (Opp. at p. 5.)

Here, Plaintiff has not established excusable neglect. He presents no competent evidence establishing the nature or effect of Bundy's alleged cognitive or medical impairment or connecting that impairment to the omission of the Chavez testimony, other witness evidence, photographs, video, or records concerning the oil plate from the summary judgment opposition. Plaintiff's emails show that he repeatedly urged Bundy to use that evidence and that the attorney-client relationship had materially deteriorated. (Motion, Ex.

A.) The emails do not establish why Bundy omitted the evidence or that the omission resulted from an impairment qualifying as excusable neglect under Minick.

The record also does not establish positive misconduct.

Plaintiff's emails support his attempts in attempting to communicate with Bundy. Bundy nevertheless attended the Chavez deposition, filed an opposition to State Farm's motion, and remained involved in the litigation. (McDonald Decl. ¶¶ 6, 8-9.) The Court considered the opposition and Plaintiff's declaration on the merits. (4/17/26 Order at p. 10.) On this record, Bundy's conduct does not rise to the extreme degree required to avoid imputation.

Discretionary relief is denied.

#### Section 1008, Subdivision (a): Reconsideration

A party may move for reconsideration within 10 days after service of written notice of an order based on new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) The moving party must also provide a satisfactory explanation for failing to present the new or different information earlier. (Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 833.) A motion for reconsideration must be decided before entry of judgment. Once judgment has been entered, the Court lacks authority under section 1008 to reconsider the prior order, even if the motion for reconsideration was filed before judgment and remained pending. (Passavanti v. Williams (1990) 225 Cal.App.3d 1602, 1606; APRI Ins. Co. v. Superior Court (1999) 76 Cal.App.4th 176, 180-182.)

Plaintiff seeks reconsideration based on the allegedly concealed testimony of Travis Chavez, alleged tampering with court reporter certification seals, and related allegations concerning Defendant's examinations under oath and claims-handling conduct. (Motion at pp. 6-8.) Defendant responds that Plaintiff presents no new facts because Plaintiff and Bundy attended the Chavez deposition and Plaintiff knew of the remaining matters before the summary judgment ruling. (Opp. at pp. 5-7.)

Here, the Court lacks authority under section 1008 to reconsider the April 17, 2026 order. Plaintiff filed the motion for reconsideration on April 27, 2026. Judgment was entered on May 1, 2026. The fact that the motion was pending when judgment was entered does not preserve

the Court's authority to reconsider the order. (APRI, supra, 76 Cal.App.4th at p. 182.)

Even if judgment had not been entered, reconsideration would not be warranted. The Chavez deposition occurred on August 21, 2025, and both Plaintiff and Bundy attended. Plaintiff's own exhibits include emails sent before the summary judgment hearing describing the substance and asserted importance of Chavez's testimony. The testimony therefore was not newly discovered, and Plaintiff does not satisfactorily explain why it was not presented earlier.

Moreover, Plaintiff has not shown that the asserted facts would change the result. The April 17, 2026 order granted summary judgment on two independent grounds. Plaintiff's showing concerns principally the cause of the engine damage and alleged irregularities involving the EUO materials, but Plaintiff does not demonstrate that those matters would eliminate the separate cooperation ground supporting summary judgment. Accordingly, the asserted facts do not warrant modification or revocation of the April 17, 2026 order.

Reconsideration is denied.

## CONCLUSION

Plaintiff's Motion to Set Aside Summary Judgment and for Reconsideration is DENIED.